

25STLC04090 25STLC04090

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-06-25

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Case Number: 25STLC04090 Hearing Date: June 25, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff

Geico General Insurance Company's Motion to Vacate Dismissal is granted. The dismissal entered on 01/02/2026 is hereby vacated.

Order

to Show Cause Re: Request for Default Judgment is scheduled for 07/30/2026 at 09:30 AM in Department 26 at Spring Street Courthouse.

Analysis:

Plaintiff Geico General Insurance Company ("Plaintiff") filed the instant action for automobile subrogation against Defendant Angel Bruce Aguirre ("Defendant") on May 23, 2025. Following Defendant's failure to file a response to the Complaint, the Court entered their default on November 12, 2025. Plaintiff then dismissed the action on January 2, 2026.

Plaintiff filed the instant Motion to Vacate Dismissal on May 5, 2026. Plaintiff served the Motion on Defendant by first-class mail on May 4, 2026. No opposition has been filed to date.

Discussion

The

Motion is brought pursuant to Code of Civil Procedure, section 473, subdivision (b). Under this statute, an application for relief must be made no more than six months after entry of the order from which relief is

sought and must be accompanied by an affidavit of fault attesting to the party or attorney's mistake, inadvertence, surprise or neglect. (Code Civ. Proc., § 473, subd. (b); English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.) A timely request for relief from an entry of default, default judgment, or involuntary dismissal, based on attorney fault, must be granted. (Code Civ. Proc., § 473, subd. (b).)

Plaintiff

timely filed the Motion four months after dismissal of the action and included an attorney affidavit of fault explaining that Plaintiff's counsel dismissed the action based on a misunderstanding that the parties had fully settled the action. (Motion, Yamamoto Decl., ¶¶2-5.) Based on the timely request for relief and supporting attorney affidavit of fault, the case must be reinstated pursuant to Code of Civil Procedure section 473, subdivision (b).

Conclusion

Plaintiff

Geico General Insurance Company's Motion to Vacate Dismissal is granted. The dismissal entered on 01/02/2026 is hereby vacated.

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Moving party to give notice.